

ELIZABETH II



1988 CHAPTER xv

An Act to confirm a Provisional Order under the
Private Legislation Procedure (Scotland) Act 1936,
relating to the Scottish Development Agency (Oban
South Pier).
[26th May 1988]

WHEREAS the Provisional Order set forth in the Schedule hereunto
annexed has been made by the Secretary of State under the provisions
of the Private Legislation Procedure (Scotland) Act 1936, and it is
requisite that the said Order should be confirmed by Parliament: 1936 c. 52.

Be it therefore enacted by the Queen's most Excellent Majesty, by and with
the advice and consent of the Lords Spiritual and Temporal, and Commons,
in this present Parliament assembled, and by the authority of the same, as
follows:—

1. The Provisional Order contained in the Schedule hereunto annexed is
hereby confirmed.

Confirmation of
Order in
Schedule.

2. This Act may be cited as the Scottish Development Agency (Oban South
Pier) Order Confirmation Act 1988.

Short title.

SCHEDULE

SCOTTISH DEVELOPMENT AGENCY (OBAN SOUTH PIER)

Provisional Order to empower the Scottish Development Agency to reconstruct and enlarge Oban South Pier; and for related purposes.

WHEREAS—

1975 c. 69. (1) The Scottish Development Agency (hereinafter called “the Agency”) were established by the Scottish Development Agency Act 1975 for the purposes of furthering the development of Scotland’s economy and improving its environment:

1896 c. clxxvii. (2) The Oban South Pier (hereinafter referred to as “the pier”) was constructed by the Commissioners of the burgh of Oban pursuant to the Pier and Harbour Orders Confirmation (No. 5) Act 1896 as a facility for local vessels:

(3) The pier has not been used by vessels for many years and is now incapable of being used by any vessels at low tide and lies almost derelict:

(4) It would be of public and local advantage that the Agency should be empowered to reconstruct and enlarge the pier so that it may again be used as a facility primarily for local vessels, and that the other provisions of this Order should be enacted:

1936 c. 52. (5) The purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

(6) A plan and sections showing the lines and levels of the works authorised by this Order have been deposited with the sheriff-clerk of the sheriff court district of Oban, the said plan and sections being in this Order referred to respectively as the deposited plan and the deposited sections:

Now therefore, in pursuance of the powers contained in the said Act of 1936, the Secretary of State orders as follows:—

Short title. 1. This Order may be cited as the Scottish Development Agency (Oban South Pier) Order 1988.

Interpretation. 2.—(1) In this Order—
 “the Agency” means the Scottish Development Agency;
 “the level of high water” means the level of mean high-water springs;
 “the limits of deviation” means the limits of deviation shown on the deposited plan;
 “tidal work” means so much of a work authorised by this Order as is on, under or over tidal waters or tidal lands below the level of high water;
 “the works” means the works, or any of them, authorised by section 3 below, and includes any such works as reconstructed, renewed or altered under that section.

(2) In this Order, except in section 4 below, situations, points, directions, distances or dimensions stated in any description of works, lands or powers shall be construed as if the words "or thereabouts" were inserted after each such situation, point, direction, distance or dimension.

3.—(1) Subject to the provisions of this Order the Agency may, in the lines and situations, within the limits of deviation and according to the levels shown on the deposited sections, construct and maintain the works hereinafter described, with all necessary works and conveniences connected therewith in the parish of Kilmore and Kilbride, in the district of Argyll and Bute, that is to say:—

Power to
construct
works.

Work No. 1 A solid faced quay, comprising steel sheet piling, reinforced concrete and infill material together with a reclamation of the seabed by infilling, levelling and surfacing and enclosing an area of 0.5 hectares commencing from the face of the existing slipway at a point at NM 185556729702 (being the point of commencement of Work No. 1) thence proceeding in a northerly direction for a distance of 18 metres to a point at NM 185557729720, thence in a westerly direction for a distance of 52 metres to a point at NM 185505729722, thence in a north-westerly direction for a distance of 62 metres to a point at NM 185453729756, thence in a south-westerly direction for a distance of 4 metres to the masonry face of the existing solid quay at a point at NM 185449729755, thence following the line of mean high water on the existing masonry face for a distance of 4 metres to a point at NM 185446729758, thence following the line of mean high water on the existing slipway for a distance of 6 metres to a point at NM 185442729753 on the masonry face of the existing retaining wall, thence following the line marked "Limit of Deviation of Work Nos. 1 and 2" on the deposited plan to a point at NM 185552729691 and thence in a northerly direction for a distance of 12 metres to the point of commencement.

Work No. 2 Reconstruction and extension of a slipway having a width of 6 metres, commencing at a point at NM 185555729690, extending in a north-north-easterly direction for a distance of 15 metres to a point at NM 185559729704, thence in a northerly direction for a distance of 44 metres and terminating at a point at NM 185562729748.

(2) The Agency may within the limits of deviation reconstruct, renew or alter the works and may maintain the same as reconstructed, renewed or altered.

(3) Subject to the provisions of this Order, the Agency may within the limits of deviation fill up, raise, enclose and reclaim land from the bed of the harbour and of the foreshore and for that purpose may place such piles and construct such groynes, retaining walls and other works in and upon the bed of the harbour and of the foreshore as the Agency deem necessary:

Provided that the Agency shall not exercise the powers of this section—

- (a) in relation to any land not owned by them unless they first obtain a consent in writing of the owner thereof; or
- (b) in relation to any part of the harbour in front of or adjoining land belonging to Her Majesty in right of Her Crown or to a government department or held in trust for Her Majesty for the purposes of a government department and protected by section 14 below, without the consent in writing of the Crown Estate Commissioners or, as the case may be, the government department.

4. Subject to the provisions of this Order, in the construction of the works the Agency may deviate laterally from the lines or situations thereof shown on

Power to
deviate.

the deposited plan to the extent of the limits of deviation, and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding three metres upwards and to such extent downwards as may be found necessary or convenient.

Subsidiary
works.

5. Subject to the provisions of this Order, the Agency, for the purposes of or in connection with the works may from time to time within the limits of deviation construct and maintain all such subsidiary or incidental works and conveniences as may be necessary or expedient for the purposes of or in connection with the construction, maintenance and use of the works.

Power to
dredge.

6. Subject to section 14 below, the Agency may, for the purposes of constructing and maintaining the works from time to time deepen, dredge, scour, cleanse, alter and improve so much of the bed of the harbour and of the foreshore as lies within the limits of deviation and may use, appropriate or dispose of the materials (other than wreck within the meaning of Part IX of the Merchant Shipping Act 1894) from time to time dredged by them:

1894 c. 60.

Provided that no materials so dredged (other than those dredged for the purpose of constructing the works or filling in and reclaiming so much of the bed of the harbour and of the foreshore as is situated within the limits of deviation) shall be deposited below the level of high water except in such places and in accordance with such conditions and restrictions as may be approved or prescribed by the Secretary of State.

Period for
completion
of works and
authorised
extension
thereof.

7.—(1) Subject to subsection (2) below, if the works are not completed within 10 years from the coming into operation of this Order, the powers by this Order granted to the Agency for constructing the works shall cease except as to so much thereof as shall then be completed.

(2) On the application of the Agency, the Secretary of State may, by order, extend or, from time to time, further extend the period referred to in subsection (1) above.

1945 c. 18.

(3) (a) An order made under subsection (2) above shall be subject to special parliamentary procedure and accordingly shall be deemed to be an order made in pursuance of an Act passed after the passing of the Statutory Orders (Special Procedure) Act 1945.

(b) In the application of section 10 of the said Act to an order made under subsection (2) above, there shall be substituted for the requirements of the empowering enactment referred to in the said section 10 such requirements as to the service of notices and as to the time within which and the manner in which objections may be made to any application made by the Agency in pursuance of subsection (2) above as may be specified by the Secretary of State.

Tidal works not
to be executed
without approval
of Secretary of
State.

8.—(1) A tidal work shall not be constructed, renewed or altered except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun.

(2) If a tidal work is constructed, renewed or altered in contravention of this section—

(a) the Secretary of State may by notice in writing require the Agency at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition and if, on the expiration of 30 days from the date when the notice is served upon the Agency they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Agency.

9.—(1) The Agency shall at or near a tidal work during the whole time of the construction, renewal or alteration thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation, as the Secretary of State shall from time to time direct.

Lights on tidal works during construction.

(2) If the Agency fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

10.—(1) After the completion of a tidal work the Agency shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for preventing danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Permanent lights on tidal works.

(2) If the Agency fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

11. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work or of the site upon which it is proposed to construct the work and any expenditure incurred by him in such survey and examination shall be recoverable from the Agency.

Survey of tidal works.

12.—(1) In the case of injury to or destruction or decay of a tidal work or any part thereof the Agency shall forthwith notify the Commissioners of Northern Lighthouses and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Provision against danger to navigation.

(2) If the Agency fail to notify the Commissioners of Northern Lighthouses as required by this section or to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

13.—(1) Where a tidal work is abandoned or suffered to fall into decay the Secretary of State may by notice in writing require the Agency at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

Abatement of works abandoned or decayed.

(2) Where a work consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of 30 days from the date when a notice under this section is served upon the Agency they have failed to comply with the requirements of the notice the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Agency.

14.—(1) Nothing in this Order shall affect prejudicially any estate, right, power, privilege, authority or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained shall authorise any person to take, use, enter upon or in any manner interfere with, any land or hereditaments or any rights of whatsoever description

Crown rights.

(including any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary)—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners, without the consent in writing of those commissioners; or
- (b) belonging to a government department, or held in trust for Her Majesty for the purposes of a government department, without the consent in writing of that government department.

(2) A consent under subsection (1) above may be given unconditionally or subject to such conditions and upon such terms as shall be considered necessary or appropriate.

Saving for
Commissioners
of Northern
Lighthouses.

15. None of the provisions of this Order shall affect prejudicially the jurisdiction or authority of the Commissioners of Northern Lighthouses.

Saving for certain
enactments.
1974 c. 40.
1985 c. 48.
1949 c. 74.

16. Nothing in this Order shall—

- (a) affect the operation of the Control of Pollution Act 1974 or Part II of the Food and Environment Protection Act 1985; or
- (b) exempt the Agency from the provisions of Part I of the Coast Protection Act 1949.

Saving for town
and country
planning.
1972 c. 52.

17. The Town and Country Planning (Scotland) Act 1972 and any orders, regulations, rules, schemes and directions made or given thereunder and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised by this Order.

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Scottish Development Agency (Oban South Pier) Order Confirmation Act 1988

CHAPTER xv

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